

Ram Kumar Singh v. Electricity Ombudsman, U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 30 May 2022 · Writ-C No. 3294 of 2022 ·
Listed with connected writ; Ombudsman order stayed on Rs 3 lakh deposit

HEADNOTE

Writ challenging the Ombudsman's order and departmental bills was directed to be listed with connected Writ Petition No. 4403 (M/S) of 2015, in which a demand under clauses 5.6 and 5.7 of the Supply Code, 2005, had already been permitted subject to further orders. Stay of the Ombudsman order was conditional on a deposit of Rs. 3 lakhs. Later dates only called for those bills and time for a short counter on parallel Ombudsman proceedings.

FACTUAL SUMMARY

Ram Kumar Singh challenged an order of the Electricity Ombudsman and bills raised by the electricity department in Writ-C No. 3294 of 2022 at the Allahabad High Court, Lucknow Bench. The same dispute had partly come up in Writ Petition No. 4403 (M/S) of 2015, where on 31 July 2015 the Court permitted the department to prepare a demand under clauses 5.6 and 5.7 of the Supply Code, 2005, subject to further orders. The department later said he had also gone to the Ombudsman.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Connected listing and interim stay

HOLDING

The writ was directed to be listed with Writ Petition No. 4403 (M/S) of 2015, the Court noting that the bill dispute ought to have been raised there, where the order of 31.07.2015 had already permitted a demand by bills under clauses 5.6 and 5.7 of the Electricity Supply Code, 2005, subject to further orders. On deposit of Rs. 3 lakhs, operation of the Electricity Ombudsman's order was to remain stayed, the deposit remaining subject to the final orders in the writ. Later orders only adjourned the case, called for the bills raised under the 2015 order, and granted three weeks for a short counter affidavit on parallel Ombudsman proceedings.

¶ 2-5

PRINCIPLE TAGS

procedural-listing-no-construction

Clauses 5.6 and 5.7 were mentioned only as the basis of the connected 2015 order. This writ was listed with that petition and the Ombudsman order was stayed on a deposit, without any construction of the Code or a decision on the bills. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEPARTMENTAL BILLS AND OF THE ELECTRICITY OMBUDSMAN'S ORDER

Left open for consideration with Writ Petition No. 4403 (M/S) of 2015. Later dates only sought the bills raised under the 2015 order and a short counter on parallel Ombudsman proceedings. ¶ 2-5